Request For Quotation

Collective No: 9900048325 OQ Refineries LLC

Vendor Code:	12169
Vendor Name:	OQ Website
Vendor Name:	
City:	MUSCAT
Country:	
P.O. Box:	PC:
Contact Person:	
Email Address:	
Tel No:	

Information

THIS IS NOT AN ORDER

Submission Date:	20.08.2026
Floating Date:	13.08.2026
P\C Officer:	Marjun DOYOG
Telephone:	
Fax:	
Email:	marjun.doyog@oq.com
Internal Number:	6000061376

Submission Date & Location

Kindly submit your Quotation on or before 20.08.2026 by 23:59:59 hrs.

If supplier copies the procurement officer while submitting his offer, his bids/offer will be rejected.

Submission Details

Quotations and technical submissions (if applicable) shall be submitted via Tawreed portal. For any further clarifications, please contact the respective procurement officer. Failure to comply with any of the submission instructions shall result in disqualification of the Quotation.

[Bidder to complete the following declaration in RFQ submission]

Dear Procurement Officer

Having carefully examined the Request For Quotation (RFQ) and its attached Instructions to Bidders and General Conditions for Purchases and Minor Services, we offer to supply the Goods and Services for the Prices submitted in this Quotation.

We confirm that our Quotation is made in full conformity with the RFQ, the Instructions to Bidders, specifications, General Conditions for Purchases and Minor Services and all Clarifications and Addenda issued during the RFQ period.

If our Quotation is accepted and a Purchase Order or Service Order issued by OQ we agree to deliver the Goods and Services in full accordance with the RFQ and our Quotation.

We agree to abide by this Quotation for a period of ninety (90) days from the Submission Date and it shall remain binding upon us and may be accepted at any time before the expiration of this period.

Dated _ _ _ _ _ _ _ _ _ .

Signed _ _ _ _ _ _ _ _ _ _ _ _ _ _.

Name: _ _ _ _ _ _ _ _ _ _ _ _ _

Request For Quotation

Collective No: 9900048325 OQ Refineries LLC

for and on behalf of

_ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _

Key Details for Services :-

Service Duration	3 days
Location of Services	Sohar
Contractor Representative	
Commencement Date (no. of days of receipt of Service Order)	1
Penalties/Liquidated Damages for Delay	0.00 % of the Lump Sum per day subject to a maximum of 10% of the Total Lump Sum

Order Currency:_____

Item No.	Material	Description	Quantity	UOM	Unit Cost	Line Cost
10		Call-off contract for the reuse/recyclin	1	AU		
The Item covers the following services:						
	10	Call-off contract for the reuse/recyclin	1.000	EA		
					(A)Ex-Works Costs	
					(B)CIF Costs	
					(C) Custom Duty	
					(D) COO Charge	
					(E) Total Cost (B+C)	
Total(In words):						
					Estimated Weight	

1. OQ Definitions and RFQ/PO Instructions to Bidders for RFQ, PO & PC

1.1 Definitions

1.1.1 Affiliate means in respect of a Party, any entity controlling, under common control with or controlled by such Party and Control shall mean ownership, directly or indirectly, of more than fifty percent (50%) of the stock conferring the right to vote in such entity or the right otherwise to appoint the majority of the directors or other governing body of such entity.

1.1.2 OQ Group means collectively OQ S.A.O.C. (Commercial Registration Number 1000250), OQ Refineries and Petroleum Industries L.L.C. (Commercial Registration Number 1113003), OQ Plastics L.L.C. (Commercial Registration Number 1218747), OQ Refineries L.L.C. (Commercial Registration Number 1134221), OQ Aromatics L.L.C. (Commercial Registration Number 1798189), OQ Depots L.L.C. (Commercial Registration Number 1332692), OQ Logistics L.L.C. (Commercial Registration Number 1192529), OQ LPG L.L.C. (Commercial Registration Number 1250745), OQ Methanol L.L.C. (Commercial Registration Number 1830503), OQ Marketing L.L.C. (Commercial Registration Number 1287488), OQ Trading Ltd., any other entity whose majority shareholding is owned by any of the OQ Group entities and whose name may change from time to time and each of their respective Affiliates, Subcontractors, officers, employees (including agency personnel) and agents. This RFQ may be issued by any of OQ Group for and on behalf of any or all of these operating companies.

1.1.3 Party means either of OQ or the Seller/Contractor and together means the Parties.

1.1.4 Price means the price as more particularly described in the Service Order to be paid by OQ to the Contractor.

1.1.5 Purchase Order, Service Order, Contract and Agreement shall mean the same.

1.1.6 Scope of Supply and/or Services shall be attached separately (if applicable)

1.1.7 Seller/Contractor shall mean the party that is contracted to OQ.

1.1.8 Supplier Group means the Supplier, sub-suppliers, its and their respective Affiliates and its and their respective officers, employees (including agency personnel) and agents, including all Personnel.

1.1.9 Tax means any and all net income, gross income, gross receipts, sales, use, transfer, franchise, net worth, profits, license ,lease, service, service use, withholding, payroll, employment, excise, severance, stamp, occupation, premium, property, real property taxes and fees, customs, duties or other taxes, fees, assessments levies, charges or other impositions of any kind whatsoever or obligatory charge of like or equivalent nature, together with any interest thereof and any and all penalties, additions to tax, or additional amounts imposed by or on behalf of any governmental authority.

1.2 RFQ/PO Instructions to Bidders for RFQ, PO & PC

1.2.1 Bidder shall respond to this RFQ with a Quotation. Bidder is requested to acknowledge the receipt of this RFQ by return email to the designated OQ employee procurement officer who issued the RFQ.

1.2.2 Registration Requirements. Unless otherwise agreed by OQ, Bidder must be registered with OQ & Joint Supplier Registration System (JSRS) as an approved Seller for the materials / services to be offered by their Quotation. If Bidder is not registered, the registration can be done through Tawreed Portal at www.tawreed.oq.com (“Tawreed”). Bidders must submit a signed OQ's Confidentiality

Declaration or Non-Disclosure Agreement (NDA), through Tawreed Portal only.

1.2.3 Quotation. Bidder shall submit its Quotation by completing the necessary sections of the enclosed OQ RFQ only. Bidder may only indicate deviations relating to the subject matter of the RFQ by clearly indicating where the Quotation differs from the RFQ requirements and any proposed amendments. For the avoidance of doubt, OQ is not obliged to accept any deviations. Bidder shall provide the complete breakdown of pricing required. The Quotation and any resultant Purchase Order/Service Order shall be governed by OQ General Conditions for Purchase and Services, attached below, Bidder must submit two signed copies of the Purchase Order with all sections duly completed. Submitting a Quotation in any other format may result in Bidder's Quotation being rejected at OQ's sole discretion.

1.2.4 Acceptance. Acceptance by OQ will be confirmed by the issuance of a Purchase Order/Service Order within the Quotation validity period which shall be binding.

1.2.5 Clarifications. If Bidder requires any further information or clarification regarding this RFQ then a request for clarification shall be sent in writing through Tawreed.

1.2.6 Regrets. If Bidder is not in a position to submit a Quotation, Bidder is requested to confirm by email via Tawreed.

1.2.7 Advance Payment Bond. If OQ agrees to an Advance Payment, then it will be on condition that the successful Bidder submits an Advance Payment Bond in accordance with the General Conditions Applicable for Procurement of Goods and Services and in the exact format detailed in Appendix 3. If an Advance Payment for supply of Goods or Services is agreed then an Advance Payment Bond and or Bank Guarantee from a registered bank in the Sultanate of Oman, acceptable to OQ, in an amount equal to the Advance Payment shall be submitted by the Seller/Contractor to OQ. Submission of any Advance Payment Bond or Bank Guarantee from a registered bank outside of the Sultanate of Oman shall be pre-approved by OQ prior to submission.

1.2.8 Submission of Quotation. The date, method and location for submitting the Quotation will be indicated on the front page of the RFQ. Any Quotation received after this date and time will be rejected or accepted at OQ's sole discretion.

1.2.9 No Obligation. OQ is not obliged to accept the lowest priced Quotation or any Quotation. OQ is not obliged to provide any reasons for rejecting any Quotation. OQ may, at its sole discretion, reduce or increase the quantity ordered or split orders between Bidders.

1.2.10 Extension. Bidder must request any extension of time not less than 48 hours before the Submission Date. OQ may or may not agree to award an extension at its sole discretion.

1.2.11 Validity. Bidder's Quotation shall be valid for not less than ninety (90) days from the Submission Date.

2. General Conditions Applicable for Procurement of Goods and Services

2.0 Payment. The Price of the Goods and/or Services shall be the amount set out in the Purchase/Service Order. The Price is the total amount due to be paid by OQ to the Seller in respect of satisfactory performance by the Seller/Contractor of its obligations under this Purchase/Service Order. The Price is inclusive of amounts in respect of any applicable taxes duties or similar charges and for Goods includes the costs of packaging, insurance and carriage of the Goods. No extra charges shall be effective unless agreed in writing and signed by OQ. All costs associated with preparation of Seller's/Contractor bid, quotation, development of offer or related to this Purchase/Service Order are for Seller's/Contactor account. Any legalization costs for packaging and documentation including Material Test Certificates or Conformance Certificates are for Seller's account. The Seller may invoice OQ for the Goods on or at any time after the completion of delivery. The Contractor may invoice OQ for the Services performed on or at any time after Completion or as set out in the

Scope of Services. Seller shall submit following documents for payment: Invoice; PO / PC copy; and Proof of delivery / service completion report.

2.1 OQ shall pay undisputed and correctly rendered invoices from the Seller/Contractor within thirty (30) days of the later of receipt of the invoice. Payment shall be made to the Contractor's bank account. If OQ shall dispute any item on any invoice in whole or in part or if the invoice is prepared or submitted incorrectly in any respect, OQ shall pay only the undisputed portion of a disputed invoice. OQ may, without limiting any other rights or remedies it may have, set off any amount owed to it by the Seller/Contractor against any amounts payable by it to the Seller/Contractor under this Purchase/Service Order.

2.2 Audit Rights. OQ shall have the right, to inspect and audit any of Seller's/Contractor records, including data stored on computers, books, personnel records, accounts, correspondence, memoranda, receipts, vouchers and other papers of every kind in connection with this Purchase/Service Order and/or Goods and all transactions related thereto as may be necessary in the opinion of OQ to verify that the requirements of this Purchase/Service Order are being met and shall have access to all information relating to the rates and prices as may reasonably be required to verify payments made to or by Seller/Contractor under or pursuant to this Purchase/Service Order. Such inspections and audits may be carried out by OQ in respect of this Purchase/Service Order at any time until expiry of twenty-four (24) months from the end of the calendar year in which this Purchase/Service Order is terminated or completed. OQ shall use all reasonable endeavors to conduct any such inspections and audits in a manner which shall result in a minimum of inconvenience to Seller/Contractor.

2.3 Liability & Indemnity. The Seller/Contractor shall indemnify OQ against all liabilities, costs, expenses, damages and losses (including but not limited to any direct losses and all interest, penalties and legal and other professional costs and expenses) suffered or incurred by OQ arising out of or in connection with: a) any claim made against OQ for actual or alleged infringement of a third party's IP Rights arising out of, or in connection with, the supply or use of the Goods; b) any claim made against OQ by a third party arising out of, or in connection with, the supply of the Goods, to the extent that such claim arises out of the breach, negligent performance or failure or delay in performance of this Purchase/Service Order by the Seller/Contractor, its employees, agents or subcontractors; and c) any claim made against OQ by a third party for death, personal injury or damage to property arising out of, or in connection with, defective Goods, to the extent that the defect in the Goods is attributable to the acts or omissions of the Seller/Contractor or Manufacturer, its employees, agents or subcontractors.

The Seller/Contractor shall indemnify OQ from and against all claims, liabilities or losses arising by reason of the following if connected with the performance of this Purchase/Service Order: a) all injury to, death, or illness of persons in the Supplier Group; and b) all damage to or loss of property of the Supplier Group, even if caused by the negligence or fault of the OQ Group or any other person. The Seller/Contractor shall indemnify OQ from and against all claims, liabilities or losses arising by reason of the following if connected with the performance of this Contract: a) all injury to, death, or illness of third parties; and b) all damage to or loss of third parties' property, to the extent caused by the negligence or fault of the Supplier Group, even if contributed to by the joint or concurrent negligence or fault of the OQ Group or any other person; provided that, in the event of joint or concurrent negligence or fault of the Supplier Group and the OQ Group, the Supplier's indemnification obligation shall be limited to the Supplier Group's proportionate share of such negligence or fault.

OQ shall indemnify the Seller/Contractor from and against all claims, liabilities or losses arising by reason of the following if connected with the performance of this Purchase/Service Order: a) loss of or damage to OQ's property, except that nothing in this clause will in any way limit Seller/Contractor's obligations to remedy defects, whether owned, leased or otherwise obtained under arrangements with financial institutions arising from or related to the performance of this Purchase/Service Order; b) Personal injury including death or disease to any person who is an employee of OQ arising from or relating to the performance of this Purchase/Service Order; c) subject to any other express provisions of this Purchase/Service Order, personal injury including death or disease or loss of or damage to the property of any third party to the extent that any such injury, loss or damage is caused by OQ's negligence or breach of duty (whether statutory or otherwise).

2.4 Consequential Loss shall mean: Consequential loss; and/or loss of production, loss of product, loss of use, loss of business and business interruption and loss of revenue, profit or anticipated profit whether direct or indirect arising from or related to the performance of this Purchase/Service Order, whether or not such losses were foreseeable at the time of entering into this Purchase/Service Order.

Except to the extent of any agreed remedies expressly provided for in this Agreement but notwithstanding anything else to the contrary in this Agreement, neither OQ nor Contractor shall be liable to the other for any Consequential Loss which may be suffered by the other in connection with this Agreement

2.5 Applicable Law and Dispute Resolution. The laws of the Sultanate of Oman shall govern the construction, validity and performance of this Purchase/Service Order. Unless otherwise agreed, any dispute arising out of or in connection with this Purchase/Service Order which cannot be resolved to the mutual satisfaction of the Parties then the Parties hereto agree to submit to the jurisdiction of the courts of Oman to resolve any matter in dispute.

2.6 Force Majeure. Except as may be specifically otherwise provided in this Purchase/Service Order, neither Party shall be liable for delays in performance or for non-performance directly occasioned or caused by Force Majeure. Force Majeure means Acts of God, war (declared and undeclared), riots, civil commotion, revolution, hostilities, blockades, nuclear hazards, extreme weather conditions, acts of any government causing a political embargo or other political restraint adversely affecting the freedom to transact business with or in the Sultanate of Oman and any other similar cause or of equivalent force occurring within the Sultanate of Oman which is beyond the control of the Parties, unavoidable and which could not reasonably be foreseen and which renders impossible the fulfilment of a particular term of this Purchase/Service Order. Strikes, lockouts or differences with workers which are limited to Seller/Contractor's personnel or those of Seller/Contractor's sub-Seller/Contractors and inability of either Party to secure funds shall not be regarded as Force Majeure. The Party prevented from carrying out its obligations shall immediately give notice in writing to the other Party specifying the exact nature of the circumstances relied upon and the date upon which it became unable to perform its obligations as a consequence of the circumstance specified and the steps it is taking to mitigate those circumstances. In the event that the circumstances shall continue for a period in excess of ninety (90) consecutive or one hundred and twenty (120) non-consecutive calendar days than either of the Parties may terminate this Purchase Order by written notice without any liability upon either of the Parties to the other.

2.7 Assignment and Sub-Contracting. Seller/Contractor may not assign, subcontract, or transfer any part of this Purchase/Service Order or the obligations of Seller/Contractor under or related to this Purchase/Service Order without the prior written approval of OQ. Approval by OQ of a sub-contractor shall not relieve Seller/Contractor from its responsibility for performance of the part of this Purchase/Service Order that is subcontracted.

2.8 Confidential Information. All information obtained by Seller/Contractor for or in connection with this Purchase/Service Order and Seller/Contractor's supply of the Goods/Services shall be considered confidential and shall not be used by Seller/Contractor other than for the purposes of supplying the Goods/Services, or divulged by Seller/Contractor, its servants or agents to any person, firm or corporation other than OQ's designated representative. The foregoing restrictions shall not apply to any information disclosed by OQ to Seller/Contractor which: a) At the time of disclosure is in the public domain, or b) After disclosure becomes part of the public domain, or c) Seller/Contractor can show was rightfully in its possession at the time of disclosure without limitation or restriction as to use or disclosure, and was not acquired directly or indirectly from OQ, or d) Seller/Contractor rightfully receives from any third party who did not receive such information directly or indirectly from OQ with limitation or restriction as to use or disclosure.

2.9 Termination. In the event of Seller/Contractor's failure to perform or other breach of this Purchase/Service Order, OQ shall have the right to terminate this Purchase/Service Order forthwith without being first obliged to seek any remedy by Seller/Contractor. Termination under this clause shall be at no extra cost to OQ. OQ reserves the right to terminate this Purchase/Service Order at any time by giving Seller/Contractor written notification specifying the date of termination. OQ shall pay Seller/Contractor for Goods satisfactorily delivered and accepted and Services satisfactorily performed and accepted up to the date of termination. In no event shall Seller/Contractor be entitled to any prospective profits or any damages resulting from such termination.

2.10 Costs. Each Party shall pay its own costs incurred in connection with the negotiation, preparation, execution and performance of this agreement and any documents referred to in it.

2.13 Waiver. No failure or delay by a Party to exercise any right or remedy provided under this agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

2.14 Language. This Purchase/Service Order is drafted in the English language. If this Purchase/Service Order is translated into any other language, the English language version shall prevail.

2.15 Notices. A notice given to a Party under or in connection with this Purchase/Service Order shall be in writing and sent to the Party at the address or to the fax number given in this Purchase/Service Order or as otherwise notified in writing to the other Party. Any notice given under or in connection with this Purchase/Service Order shall be in the English language. All other documents provided under or in connection with this agreement shall be in the English language or accompanied by a certified English translation. If such document is translated into any other language, the English language version shall prevail unless the document is a constitutional, statutory or other official document.

2.16 Anti-Bribery and Corruption. A Person shall be defined as a third party including, but not limited to: government officials (including directors, officers and employees of government owned and/or controlled entities); any director, officer or employee of OQ or its Affiliates, or their relatives; any candidate for public office; or any agents or intermediaries of any of the foregoing. The Seller/Contractor agrees and confirms that, in connection with the award or execution of the Purchase/Service Order, and any and all transactions contemplated by this Purchase/Service Order, it will fully comply with all applicable legislation relating to anti-bribery and anti-corruption, including, but not limited to, Royal Decrees (including: Royal Decree 7 of 1974 promulgating the Oman Penal Code; Royal Decree 112 of 2011 promulgating the Law of the Protection of Public Funds and Avoidance of Conflicts; and Royal Decree 64 of 2013 ratifying the United Nations Convention Against Corruption), regulations, ministerial directions and orders of the Sultanate of Oman. The Seller/Contractor agrees and confirms that it, and each of its Affiliates, and their respective directors, officers, employees, agents and any other person acting on its, or their, behalf has not, and will not, directly or indirectly, make, offer, authorize, promise, mediate or become any way involved in a payment or transfer of anything in value, including the provision of any advantage or any showing or providing favor or disfavor to anybody, or any service, gift, entertainment, promise, reward, rebate, discount, contribution, commission, incentive, inducement, to any Person which is intended to be, or could reasonably be construed or perceived as being, an inducement or reward for that Person doing or not doing any act, or promising to do or not to do any act. The Seller/Contractor agrees and confirms that, in connection with the award or execution of the Purchase/Service

Order, and any and all transactions contemplated by this Purchase/Service Order, it has and will apply effective anti-bribery and corruption reporting and disclosure controls and procedures and has and will maintain internal accounting systems that are sufficient to show, in reasonable detail, all transactions undertaken in relation thereto. Without prejudice to any other rights that the Seller/Contractor may have under law or otherwise, should the Seller/Contractor be considered to be in breach of any of the above provisions, OQ may, upon written notice, immediately disqualify the Seller/Contractor from bidding, quoting, tendering, applying for or otherwise entering into the proposed Purchase/Service Order or terminate this Purchase/Service Order (as the case may be) and refuse to allow the Seller to bid, quote, tender, apply or enter into any further or future Purchase/Service orders, contracts or agreements with OQ. The Seller/Contractor shall defend, indemnify and hold OQ harmless from and against any and all claims, damages, losses, penalties, costs and expenses arising from or related to, any breach of its commitments in this clause. This indemnity obligation shall survive termination or expiration of this Purchase/Service Order.

2.17 Business Ethics. In connection with Seller/Contractors performance of this Purchase/Service Order, Seller/Contractor undertakes that it will undertake and agree to act consistently with and to adhere to the principles of OQ's General Business Principle in connection

with Seller/Contractor's performance of this Purchase/Service Order. Failure to comply with this provision may constitute a material default giving rise to termination.

2.18 IP / Software. Where, as part of the performance under this Agreement, Contractor/Seller provides licensed software, Contractor/Seller shall provide OQ with a non-exclusive license to use the software solely for OQ's operational purposes. OQ agrees to defend, indemnify and hold harmless Contractor from all damages and third-party claims causes of action or damage arising from unauthorized use of the licensed software.

2.19 HSE. Contractor/Seller shall ensure that all personnel required to enter OQ's offices or sites in connection with this Agreement shall observe OQ's Health, Safety and Environmental policies and regulations and OQ's work site specific safety rules and policy. In particular, the rules for Personal Protective Equipment (PPE) shall be followed. Any required PPE shall be provided by Contractor to its personnel at no additional cost to OQ. Contractor/Seller shall ensure that all Goods delivered under this Purchase/Service Order shall be using vehicles suitable for the purpose of delivering the Goods and shall at a minimum be registered commercially and include the insurances required under Omani law for commercially registered vehicles. OQ shall be entitled to reject the Goods, or the delivery thereof, if delivery is attempted in privately registered vehicles.

2.20 Patent Rights. Contractor/Seller shall release, defend, indemnify and hold OQ harmless against all claims, liabilities, damages, losses, costs and expenses (including lawyer fees) concerning infringement or alleged infringement of any patent, registered design, trademark, service-mark, copyright or other intellectual property rights which may arise from anything done by or for Contractor/Seller in relation to the Services performed or Goods supplied under the Service Order/Purchase Order.

2.21 Title and Risk. Title and risk in any Goods or Services provided as part of the Contract shall pass to OQ on Completion.

2.22 Progress Checks, Inspections and Tests. OQ shall be entitled to inspect the Goods or Services and any work thereon and to carry out any tests as it may require before delivery or acceptance. Seller/Contractor shall afford OQ's representative every facility for such purposes, including access to Contractor's site at all reasonable times. Any such inspection or tests shall not in any way relieve Seller/Contractor from any of its obligations under the Agreement.

2.23 Drawing and Technical Data. Contractor must comply with all general and specific requirements relating to drawings and technical data as set out in Purchase Order/ Purchase. Any deviation from or modification to specifications of the Goods or Services as set out in Purchase Order/ Purchase is subject to OQ's written approval. Seller/Contractor shall, when requested by OQ, provide drawings and technical data for approval and/or record purposes. Any such approval shall not imply that OQ is responsible for the accuracy of any drawings or technical data other than its own.

2.24 Compliance to Mandatory List of Made-in-Oman materials and Local Sourcing of Goods and Services:

A. By Receiving the Purchase Order, vendors acknowledge and agree to comply with the requirements outlined in the Mandatory List of Made-in-Oman materials and Local Sourcing of Goods and Services. Vendors are responsible for ensuring that the materials and services offered in their quotations fully adhere to the specifications and standards set forth in the Mandatory List. Failure to comply may result in disqualification from consideration or termination of any resulting Purchase order.

B. Vendors are required to review the Mandatory List of Made-in-Oman materials and Local Sourcing of Goods and Services and incorporate any necessary measures to ensure compliance. Any deviations from the Mandatory List of Made-in-Oman materials and Local Sourcing of Goods and Services must be clearly stated in the quotation, along with appropriate justifications.
C. OQ reserves the right to verify compliance with the Mandatory List of Made-in-Oman materials and Local Sourcing of Goods and Services requirements during the evaluation process and throughout the duration of the purchase order.

D. By acknowledge to this purchase order, vendors acknowledge their understanding and acceptance of the importance of compliance with the Mandatory List of Made-in-Oman materials and Local Sourcing of Goods and Services requirements and their commitment to

upholding these standards and requirements.

2.25 Tax matters. The Seller/Contractor shall be responsible for reporting, filing, and payment of any taxes, duties, charges, or fees (and any related fines, penalties, or interest) imposed directly or indirectly on the Contractor or the Contractor's employees and agents, as a result of the delivery of the Scope of Work to OQ in accordance with the provisions of this Agreement. The Contractor shall pay all taxes properly and lawfully assessed or imposed by any competent authority having jurisdiction in connection with the delivery of the Scope of Work to OQ in accordance with the provisions of this Agreement. OQ shall have no liability whatsoever to pay any taxes except any taxes properly assessed by any competent authority as being payable by OQ in relation to this Agreement. The Contractor shall indemnify and keep indemnified OQ against all liabilities incurred by OQ as a consequence of breach by the Contractor of any of the obligations under or in relation to this clause and all actions, proceedings, claims, damages, charges, costs and expenses whatsoever in relation thereto.

2.26 Withholding Tax Deductions. The Seller/ Contractor shall be responsible for assessing and taking into account in its Price, the Contractor's potential tax liability, including withholding tax liabilities, based on current Omani law and the Contractor's plans for executing the Agreement. In the event that withholding tax is applicable in connection with the delivery of the Scope of Work by the Contractor to OQ in accordance with the provisions of this Agreement, the Contractor must: a) clearly separately specify which services are subject to withholding tax and which ones are not; and b) separately invoice charges for works or services which are subject to withholding tax. In the event that OQ determines, in line with OQ interpretation of Omani legal requirements, that withholding tax is applicable then OQ will withhold, from sums otherwise due to the Contractor, amounts required by applicable law to be withheld and paid to the appropriate taxing authorities and shall provide to the Contractor all receipts for payment of the amounts. It shall be the Contractor's responsibility to provide to OQ written confirmation from appropriate taxing authority in order to verify that withholding tax is not applicable.

2.27 VAT. To the extent that the goods and services provided under this Purchase Order are subject to VAT, the Contractor/Supplier shall add VAT to the Price at the prevailing rate as applicable such that the stated prices shall be considered exclusive of VAT. Where appropriate the Seller /Contractor shall apply any VAT exemption or subject the supply to zero-rated VAT, whichever may be applicable.

I. The VAT for such supply will be calculated as follows:
A x R
Where:
A is the Price payable for the supply
R is the applicable rate of VAT.
II. OQ shall pay the Price plus VAT to the Seller/Contractor following receipt of a valid tax invoice which is in accordance with the prevailing VAT Law
III. Payment of VAT to the Seller/Contractor will not be processed and released by OQ in the absence of a valid VAT invoice
IV. In the event the Seller/Contractor has or will incur direct and indirect costs and expenses, and where these costs and expenses are recharged to OQ by the Seller/Contractor as part of the Price. The value of the recharges shall be calculated net of VAT if the the following conditions are met:
a. There has been or will be VAT incurred by the Seller/Contractor on the costs and expenses
b. The VAT incurred by the Seller/Contractor are allowed for recovery or credit to the Seller/Contractor by the relevant tax authority(s)
V. For the avoidance of doubt, it shall at all times remain the sole responsibility of the Seller/Contractor to:
a. Assess the VAT rate(s) and VAT liability arising out of or in connection with this Purchase Order
b. Account for or pay any VAT (and any other tax liability) relating to payments made to the Seller/Contractor under this Purchase Order to the relevant tax authority
c. To the extent the supplies made by Seller/Contractor in relation to international transport of passengers is zero rated according to the Omani law and regulations, OQ will provide the necessary document/s and/or certification/s to satisfy Contractor/Supplier of the zero-rating VAT treatment
VI. OQ shall not be liable to the Seller/Contractor in any way whatsoever and shall have recourse in regard to any error or failure made by the Contractor/Supplier in relation to VAT, including without limit:

a. Where the Seller/Contractor is subject to a VAT ruling(s), determination, announcement, or generally accepted practice in connection
b. Where the Seller/Contractor has applied the incorrect rate of VAT (for whatever reason) and this application is subsequently held to be incorrect or invalid or
c. Where the Seller/Contractor treatment of VAT in respect of any claim for payment made under the Contract is subsequently held to be incorrect or invalid

3. General Conditions Applicable for Procurement of Goods Only (Purchase Orders)

3.1 Purchase Order means the contract between OQ and the Seller for the sale and purchase of the Goods in accordance with the following documents which are to be read and construed in the following order of priority: a) Purchase Order; b) Particular Conditions; and then c) General Conditions.

3.2 Delivery Period means the date(s) on which the Goods must be delivered as set out in the Purchase Order.

3.3 Delivery Location means the location specified by OQ for the Goods to be delivered as set out in the Purchase Order.

3.4 Goods means the goods as more particularly described in Purchase Order.

3.5 The Contract. OQ agrees to buy, and the Seller agrees to sell and deliver the whole of the Goods to OQ in accordance with the terms of this Purchase Order.

3.6 Seller's Obligations

3.6.1Delivery. Seller expressly agrees that time is of the essence for delivery of the Goods. Seller shall inform OQ well in advance about the planned delivery of goods. If the Seller requires OQ to return any packaging material to the Seller, that fact is clearly stated on the delivery note. Any such packaging material shall be returned to the Seller at the cost of the Seller. The Seller shall deliver the Goods: a) On the Delivery Date; b) To the Delivery Location; and c) During OQ's normal business hours, or as instructed by OQ; d) in accordance with the INCOTERMS set out in the Purchase Order. Delivery of the Goods shall be completed on the completion of unloading the Goods at the Delivery Location. Documents required for custom clearance and delivery of goods: Airway bill or bill of lading; Invoice; Packing list; and Certificate of Origin.

3.6.2If the Seller: a) Delivers less than [95] % of the quantity of Goods ordered, OQ may reject the Goods; or b) delivers more than [105]% of the quantity of Goods ordered, OQ may at its discretion reject the Goods or the excess Goods, and any rejected Goods shall be returnable at the Seller's risk and expense. If the Seller delivers more or less than the quantity of Goods ordered, and OQ accepts the delivery, a pro rata adjustment shall be made to the invoice for the Goods. The Seller shall not deliver the Goods in instalments without OQ's prior written consent. Where it is agreed that the Goods are to be delivered by instalments, they may be invoiced and paid for separately. However, failure by the Seller to deliver any one instalment on time or at all or any defect in an instalment shall entitle OQ to the remedies set out in the Contract.

3.6.3Supply & Packing Conditions. The Seller shall ensure that: a) The Goods are properly packed and secured in such a manner as to enable them to reach the Delivery Location in good condition; and b) each delivery of the Goods is accompanied by a delivery note which shows the date of this Purchase Order, this Purchase Order number (if any), the type and quantity of the Goods (including the appropriate code number of the Goods to enable Custom Duty exemption, where applicable), special storage instructions (if any) and, if the Goods are being delivered by instalments, the outstanding balance of Goods remaining to be delivered, together with any further information required as set out in the Purchase Order. Packets / boxes / other packaging must clearly show Purchase Order number and OQ delivery location. Material Test Certificate or Conformance Certificate must be supplied by Seller to OQ on or before Delivery for the items indicated in the Purchase Order. All chemical and catalyst packages shall include: a) The appropriate "HAZARD TYPE" and "HAZARD RATING LABEL" in bold letters; b) A lot number; c) Month & year of manufacture; d) Material expiry date of the product; e) Material Safety Data Sheet (MSDS); f) Certificate of quality. Seller must state country of origin of Goods. Seller must state the appropriate international

code (M.S. Code) for customs exemptions. Seller must specify weight, physical dimensions, size, sea or air worthy packing and all other relevant information relating to the delivery of Goods. All material delivered under the Incoterm DDP OQ's facility shall be delivered in open top trucks / vehicles and not in closed containers.

3.6.4Shelf-Life Conditions. The Seller shall ensure that as of the later of the date of the delivery of the Goods or the Goods are made available for OQ (or its nominated freight forwarder collection), the Goods shall have passed no more than 25% of the shelf life recommended by the original manufacturer for the Goods delivered. OQ at its sole discretion, shall be entitled to reject the material for any failure to deliver the Goods in accordance with the specification set under this Clause.

3.6.5Acceptance and Defective Goods. After delivery of the Goods, OQ shall have a period of fifteen (15) days to inspect the Goods and to carry out any testing to confirm that the Goods have been supplied and delivered in accordance with this Purchase Order. Upon satisfactory inspection of the Goods OQ shall provide written confirmation to the Seller to confirm that the Goods have been accepted. If OQ fails to provide written confirmation of acceptance of the Goods within seventeen (17) days of receipt of the Goods in OQ's facilities in the Sultanate of Oman, then the Goods will be deemed to have been accepted. If at any point, including for a period of eighteen (18) months after acceptance of the Goods or, in the case of plant and equipment, after twelve (12) months of the date of commissioning, whichever expires first, OQ discovers that any or all of the Goods do not conform with their description or contain any defect then OQ shall be entitled to reject the whole or any part of the Goods by notice to the Seller. On receipt of notice and at the option of OQ the Seller shall either: a) Replace any or all of the Goods which do not conform with their description, or which contain a defect; or b) Reimburse OQ the whole or any part of the Price which was paid by OQ to Seller including without limitation any freight and custom clearance charges paid by OQ which relates to the rejected Goods. Any defective or rejected Goods identified in a notice pursuant to this Clause 3.6.5 shall be collected and removed by the Seller within two weeks of the notice. All costs associated with the collection and removal of any defective or rejected Goods are for the Seller account.

3.6.6In the event of Seller failure to collect the rejected Goods in accordance with Clause 3.6.5, and upon the lapse of thirty (30) days of OQ's notice for Domestic supplies and sixty (60) days of OQ notice for the imported supplies, OQ at its discretion will transport the rejected materials to scrap yard for scraping and/or chemical disposal yard for disposal. Any cost associated with or arising from the scraping and/or disposal shall be borne by the Seller and the Seller shall have no right to claim any money from OQ for the rejected Goods which were scraped and/or disposed

3.6.7Insurance. Without in any way limiting or detracting from the Seller liabilities under this Purchase Order or the Law, the Seller shall, at its own cost and expense, take out and maintain for the duration of the Seller liability under and in respect of this Purchase Order and the relevant insurances as appropriate, issued by an insurance company registered in the Sultanate of Oman and reasonably acceptable to OQ.

3.6.8Penalties (Late Delivery). Unless specified in the purchase orderOQ has rights and remedies under the purchase order or at law,the sellershall become liable to pay OQ an amount equal to 0.3% of the total purchase order value for every day or part thereof by which the deliverydate specified in the purchase order is exceeded for any reason whatsoever, except for reasons attributable to OQ's failure to comply with this purchase order. If part of the goods are delivered or can be put into useful operation, the amount specified above shall be reduced proportionally. The amount the seller is liable to pay to OQ hereunder shall become due immediately if the goods are not delivered on the specified delivery date, without any notice or judicial intervention being required, and may be recovered by deduction from the seller’s invoices. In the event a delay is caused by the gross negligence or willful misconduct of the seller, no limitation as set out herein shall apply.

4. General Conditions Applicable for Provision of Services Only (Service Orders)

4.1 Agreement or Service Order means the contract between OQ and the Contractor for the provision of Services in accordance with the following documents which are to be read and construed in the following order of priority: a) Service Order; b) Particular Conditions; c)

General Conditions; and then d) Scope of Services.

4.2 Commencement Date shall be as set out in Service Order.

4.3 Completion means completion of the entire Services.

4.4 Place for Performance means the location specified by OQ for the Goods to be delivered as set out in the Form of Agreement.

4.5 Services means the services or work as more particularly described in the Scope of Services. Work or Works Hall have the same meaning as Services

4.6 Purchase Order means an order issued in writing by OQ at any time during the Service Order instructing the Contractor to perform the Services specified in the order within the time frame specified in the order. If the term Call Off, Call-Out, Job, Job Order, Work Order or similar terms appear in the Service Order, they shall have the same meaning as Purchase Order, unless the context requires otherwise.

4.7 Scheduled Completion Date means the date as set out in the Service Order and or Scope of Services by which Contractor shall reach Completion.

4.8 Warranty Period means the period from the commencement of the Services up to one hundred and eighty days (180 days) after Completion during which time Contractor shall remain liable for the correction of any defects in the Services.

4.9 The Contract. OQ requires the Services to be performed and the Contractor has agreed to perform the Services on the terms and conditions set out in this Service Order.

4.10 Scope of Services. Contractor shall provide to OQ the Services set out in Annex 3 (as that Annex may be amended from time to time by written agreement between the Parties).

4.11 Performance of Services and Warranties. Contractor shall exercise all reasonable skill, care and diligence in the performance of the Services and
shall ensure that its staff exercises all reasonable skill, care and diligence. Contractor warrants that its staff involved in the provision of the Services will have the requisite experience, qualifications and training to perform the Services in accordance with applicable industry practice, in a workman like manner and which is reasonably satisfactory and acceptable to OQ.

4.12 Contractor shall be liable to replace, at no cost to OQ, within a reasonable time, any staff that OQ reasonably considers do not have the ability to adequately perform the Services or who have refused to comply with OQ's reasonable instructions in respect of their conduct. Such staff shall be removed from the assignment within 24 hours of OQ issuing such instruction. The Services will be performed at the location(s) specified in the Service Order. The Contractor shall ensure that its personnel shall: a) Comply with all health, safety and environmental rules and regulations applicable at the location of the Services; b) Comply with any instructions issued by OQ relating to health, safety or the environment at the location of the Services; and
c) Perform the Services in a safe and efficient manner and in accordance with any of OQ's health, safety and environmental requirements, plans or policies as applicable. Contractor shall comply with all applicable laws, government orders, and regulations (whether of Sultanate of Oman or otherwise) in performing its obligations under this Agreement. Contractor shall be deemed to have satisfied itself before entering into this Agreement as to: a) The extent and nature of the Services and all things necessary for the proper performance and completion of the Services in accordance with the terms of this Service Order; and b) The correctness and sufficiency of the sums, rates, and prices set out in the Service Order. Any failure by Contractor to take account of matters which affect the Services shall not relieve it from its obligations under this Agreement. Contractor shall cooperate with OQ and all third party suppliers and service providers to OQ, so as to ensure that Contractor performs the Services in a coordinated, effective and timely manner.

4.13 Schedule. Contractor shall commence performance of the Services on the Commencement Date and shall proceed to perform the same with all due diligence to achieve Completion on or before the Scheduled Completion Date. Contractor shall be responsible for the programming of the Services and for independently controlling its progress.

4.14 Penalties. If the Contractor has not commenced or completed the Services in time the Contractor shall be considered in default of his obligations under the Contract. If the Contractor fails to commence or complete the Services in time the Contractor shall pay the Company, the Penalties/Liquidated Damages as stated in the Service Order for whatever reason other than Force Majeure or a delay caused by OQ. The levying of Penalties/Liquidated Damages by the Company shall be without prejudice to any other rights and remedies of OQ, which shall include the right to have work performed by another contractor. OQ shall have the right to terminate the Contract if the Contractor has not commenced or completed the Services by the time the maximum number of Penalties/Liquidated Damages has become due. Where so provided in the Contract, Penalties/Liquidated Damages may also be levied in respect of delays in the commencement or completion of Services performed on a Call-Out basis.

4.15 Penalties (Late Delivery). Unless specified in the purchase order,OQ has rights and remedies under the purchase order or at law,the sellershall become liable to pay OQ an amount equal to 0.3% of the total purchase order value for every day or part thereof by which the deliverydate specified in the purchase order is exceeded for any reason whatsoever, except for reasons attributable to OQ's failure to comply with this purchase order. If part of the goods are delivered or can be put into useful operation, the amount specified above shall be reduced proportionally. The amount the seller is liable to pay to OQ hereunder shall become due immediately if the goods are not delivered on the specified delivery date, without any notice or judicial intervention being required, and may be recovered by deduction from the seller’s invoices. In the event a delay is caused by the gross negligence or willful misconduct of the seller, no limitation as set out herein shall apply.

4.16 Defects Liability / Remedy Period. If defects in the Services are discovered by Contractor or otherwise brought to the attention of Contractor by OQ either during the performance of the Services or within the Warranty Period, Contractor shall be responsible for remedying such defects at its own cost and/or for the cost of having such defects remedied. Contractor shall as soon as practicable upon discovery of any defect or upon receiving written notification from OQ specifying any defect, remedy the same at its own expense by performing remedial work. If Contractor fails within a reasonable time to perform the remedial work as required by OQ, OQ shall have the right to have the necessary remedial work performed by other contractors or sub-contractors. OQ shall recover from Contractor all costs associated with remedying such defect, either directly from Contractor or by deducting such costs from any monies due or which become due to Contractor. OQ shall use reasonable endeavors to mitigate such costs. Contractor's financial liability in respect of costs incurred by OQ shall be limited to the actual costs incurred by OQ and in any event to a sum not greater than one hundred percent (100%) of the Price.

4.17 OQ shall have the right to modify or extend the Services specified in a Purchase Order at any time by means of a revision to a Purchase Order. Notwithstanding the expiry or early termination of the Agreement, Contractor shall not abandon any Services in progress and shall complete such Services in accordance with OQ's instructions. The terms and conditions of Agreement shall remain in full force and effect during the period required to complete these Services.

4.18 Party Representatives. OQ may appoint an OQ Contract Manager who shall be authorized to act for and on behalf of OQ in relation to this Agreement. Contractor shall appoint a Contractor Representative who shall be authorized to act for and on behalf of Contractor in relation to this Agreement.

4.19 No Partnership. Nothing in this Agreement, and no action taken under this Agreement: a) Creates a partnership; b) Creates a relationship of principal and agent between any of the parties; or c) Otherwise authorizes any party to bind any other party.

4.20 Licenses and permits. Contractor shall obtain and maintain, at its own risk and expense, such authorizations, permits and licenses as may be necessary for the performance of the Services, and which are required to be obtained and maintained in Contractor's name.

4.21 Insurance. Without in any way limiting or detracting from Contractor's liabilities under any other provisions of this Agreement or the law, Contractor shall on or before the Commencement Date, at its own cost and expense, take out and maintain for the duration of the Contractor's liability under and in respect of this Agreement and the Law, each of the insurances set out below, issued by an Insurance Company registered in the Sultanate of Oman and reasonably acceptable to OQ: a) Construction/Erection All Risks insurance covering the Permanent Work; b) adequate third party liability insurance to cover all third party liabilities arising under this Contract including the Existing Property; c) any insurance which may be required by law for or with respect to the Contractor Personnel; d) adequate liability insurance for motor vehicles and mobile equipment (owned, non-owned or hired units) employed by the Contractor or OQ supplied Equipment employed by the Contractor or any Subcontractor in connection with the performance of the Contract

Appendix : Form of Advance Payment Bond

Oman Oil Refineries and Petroleum Industries Company SAOC
P.O. Box 3568
Postal Code 112 Ruwi
Sultanate of Oman

Advance Payment Bond No _ _ _ _ _ _ _ _ _ _ _ _ _ _

Whereas M/s . _ _ _ _ _ _ _ _ _ _ (Hereinafter called the Supplier) has been awarded a Contract dated _ _ _ _ _ _ _ _ . for delivery and completion of _ _ _ _ _ _ _ _ _ _ Project as described in the contract for the total ContractPrice of R.O. _ _ _ _ _ _ _ _ _ _ (Omani Rials _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ Only) and in consideration of your making an advance payment of R.O. _ _ _ _ _ _ _ _ . (Omani Rials _ _ _ _ _ _ Only) to the Supplier being 10.% of the Contract Price, by this bond, we _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ whose address is _ guarantee to pay you a sum not exceeding R.O. _ _ _ _ _ _ (Omani Rials _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ Only) on your first written demand without any reference to or contestation on behalf of the Supplier.

It is understood that our liability towards you will be progressively reduced by the amount repaid to you by the Supplier as contained in the Certificates and Payment against the said advance payment.

The bond will be effective from _ _ _ _ _ _ _ _ . and shall be valid until _ _ _ _ _ _ _ _ , or until the amount of advance payment is fully recovered, whichever occurs later.

This bond should be returned to us upon its expiry or upon fulfillment of our undertaking whichever is the earlier.

Authorised Signatories
(To be issued by a locally registered bank)
Place:
Date: